

		Accordingly, the Court finds that there are no triable issues of material fact as to Plaintiff's first cause of action for breach of the implied covenant of good faith and fair dealing. Defendant shall give notice.
4	Enriquez Tapia vs. Country Villa Plaza Convalescent Center 2022-01276368	Motion to Compel Production Defendant Santa Ana Healthcare & Wellness Centre LP's ("Defendant") motion to compel Plaintiff Victor E. Tapia's ("Plaintiff") response to request for statement of damages is granted. Defendant's requests for monetary and terminating sanctions are denied. <u>Request for Statement of Damages & Monetary Sanctions</u> In actions for personal injury or wrongful death, a plaintiff may not state the amount of its damages claim in the complaint. (Code Civ. Proc., § 425.10, subd. (b).) Instead, a separate statutory procedure is provided through CCP section 425.11, whereby "the defendant may at any time request a statement setting forth the nature and amount of damages being sought." In response, the plaintiff may serve a statement disclosing the amount of damages sought, and the general nature of the damages sought. The plaintiff has 15 days, after the service of request, to serve the responsive statement. If the response is not served, "the defendant, on notice to the plaintiff, may petition the court in which the action is pending to order the plaintiff to serve a responsive statement." (Code Civ. Proc., § 425.11, subd. (b).) Section 425.11 does not provide for the recovery of an award of sanctions if the defendant brings a motion to compel the plaintiff to serve a responsive statement. (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1764 ["The statute does not provide for costs and fees in connection with such motion. And, since this procedure is outside the Discovery Act, the Act's sanctions provision (CCP § 2023.010 et seq.) <i>cannot</i> be utilized"] [emphasis in original].) Here, Santa Ana Health Care has proffered uncontroverted evidence that it properly served Plaintiff with a request for statement of damages on or about 11/12/25, to which Plaintiff failed to respond. (Kraml Decl. at ¶ 2, Exh. A.) As such, the Court orders Plaintiff to provide a responsive statement within 15 days of the notice of ruling. However, the Court declines to award the requested monetary sanctions. In its motion, Santa Ana Health Care cites CCP section 2023.030 as the statutory authority for its sanctions request. (Mot. at

		pp. 2-3.) However, section 2023.030 is applicable only “[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title.” (Code Civ. Proc., § 2023.030.) CCP section 425.11 is not a part of the Discovery Act or any other chapter governing a “particular discovery method.” Rather, it is a part of Title 6, Chapter 2, which is a chapter that governs <i>pleadings</i> in civil actions. <u>Request for Terminating Sanctions</u> “Trial courts are to take an incremental approach to discovery sanctions, starting with monetary sanctions and leading up to the ultimate sanction of termination. Sanctions must be proportionate to the harm caused by the misconduct and should not provide a ‘windfall’ to the party requesting sanctions.” (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095 [citations omitted].) “Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) In its moving papers, Defendant fails to point out which discovery orders Plaintiff has violated. Based on the record, the Court sees no justification for resorting to the ultimate sanction of termination at this juncture. Defendant shall give notice of the ruling.
5	Gill vs. FCA US LLC 2025-01492739	Motion to Strike Portions Of Complaint / Demurrer to Amended Complaint A. Demurrer The Court overrules Defendant FCA US LLC’s Demurrer to the sixth cause of action for fraud in Plaintiff Thomas W. Gill’s First Amended Complaint (FAC). “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or